



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

January 17, 2023

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202104584 (Incident Date: July 18, 2021) regarding Police Officer Israel Alcantara, Tax No. 952390 (DADS No. 2022-27330) and Police Officer Bianery Garcia, Tax No. 965123 (DADS No. 2022-27331)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that no disciplinary action is warranted.

Both Police Officer Alcantara and Police Officer Garcia asked the individual with whom they had been interacting if he wanted to go to the hospital. The individual declined their offer and walked away. In their interviews, the officers each explained that the individual's history of being taken to the hospital as an EDP on prior dates led them to ask whether he wanted to go to the hospital on this occasion. Both officers acknowledged not having determined that the individual was an EDP during the incident at issue here, but believed that asking him whether he wanted to go to the hospital was appropriate in light of his history. It is noteworthy that neither officer made any effort to forcibly remove the individual, and that they merely asked him whether he wanted to go to the hospital. This question was clearly made as an offer and not a threat.

Therefore, based on the foregoing, the Police Commissioner determined that Police Officer Alcantara and Police Officer Garcia will receive no disciplinary action for the alleged violation of Patrol Guide Procedure 221-13 (Mentally Ill or Emotionally Disturbed Persons).

Yours truly,

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office

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